

Delaware County Commissioners Meeting January 21st 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=DvN9bMz-LRw
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Delaware County Board of Commissioners Meeting Report

Meeting Date: Tuesday, January 21, 2025

Convened Time: 9:01 AM

Location: Delaware County Chambers

1. Meeting Identification & Attendance

- **Call to Order:** Presiding Officer Shannon Henry called the meeting to order at [00:00:27](#) on Tuesday, January 21, 2025.
- **Attendance:**
 - **Present:** Commissioner Shannon Henry (Presiding Officer), Commissioner Stephen Brand, and Commissioner James Reagan.
 - **Absent:** None noted.
- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:00:36](#).

2. Preliminary & Procedural Business

- **Approval of Minutes:**
 - *December 30th Special Meeting Minutes:* Removed from the table by voice vote following a motion and second 00:06:28. Approved via roll call vote (00:07:04: Commissioners Reagan - Yes, Brown - No, Henry - Yes). *(Note: A subsequent duplicate procedural roll call for the minutes occurred at 00:08:27 and 00:10:28 due to procedural overlaps).*
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3. Substantive Business & Board Action

- **00:01:21 BZA Board Appointment (Democratic Appointment):**
 - **Sponsor / Presenter:** Commissioner Board / Attorney John Brooke.
 - **Deliberation Summary:** Following previous public outreach that generated ~14 inquiries, the board vetted candidates to fill a required Democratic appointment slot on the Board of Zoning Appeals (BZA).
 - **Public Input:** Applicant Aie Barber addressed the board, stating he resides in Muncie, is a lifelong Democrat, has no prior board service, and intends to make objective decisions based on common sense and community benefit 00:01:57.
 - **Action & Vote Disposition:** Commissioners unanimously nominated and appointed Aie Barber via individual roll call votes (Reagan: Barber, Brand: Barber, Henry: Barber) 00:03:16.
- **00:05:12 Central Indiana Regional Development Authority (CIRDA) / ECPD Board Appointments:**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Discussion regarding regional district board appointments.
 - **Action & Vote Disposition:** Motion to table the ECPD/regional board appointments passed unanimously via roll call vote (00:05:21: Commissioners Reagan - Yes, Brand - Yes, Henry - Yes).
- **00:05:28 Handbook Revisions & Zoning Ordinance Amendments (Tabled Business):**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Commissioners noted that handbook revisions and solar zoning review items should remain tabled pending upcoming committee meetings starting Thursday.
 - **Action & Vote Disposition:** Maintained on table by consensus.
- **00:05:48 911 Center Chair Lease:**
 - **Sponsor / Presenter:** Mr. Cummings.
 - **Deliberation Summary:** Mr. Cummings reported on additional research and outreach to local vendors regarding office chairs for the 911 dispatch center, concluding the lease agreement is favorable and verified by former industry experts.

- **Action & Vote Disposition:** Approved by consensus/action of the board.
- **00:10:37 BW Construction Update (Delaware County Mental Health Facility):**
 - **Sponsor / Presenter:** Mark Manifold, Project Manager for BW Construction.
 - **Deliberation Summary:** Provided a construction progress update for December/January. The Guaranteed Maximum Price (GMP) remains unchanged at **\$7,996,017** for the ~13,000 sq. ft. facility. Utility connections, grinder pit installation, and undercutting/heavy stone stabilization for parking areas are complete. Structural engineer inspections are scheduled for Friday at 10:30 AM, followed by architectural reviews. Projected substantial completion remains May 30, 2025, with final closeout by June 16, 2025. No owner change orders have been issued or are anticipated.
 - **Action & Vote Disposition:** Information received; no board action required.
- **01:17:36 East Central Indiana Regional Planning District (ECI) Annual Update & Dues:**
 - **Sponsor / Presenter:** Bill (ECI Director).
 - **Deliberation Summary:** Bill presented an extensive update on ECI's active federal grants (EDA resiliency, CEDs, USDOT Safe Streets and Roads for All, USDA Business Entrepreneurial Services, EPA Brownfield grants with Muncie neighborhoods, J County OCRA housing grants, and AmeriCorps Broadband fellowships), Ccmg road assistance programs, and regional collaboration metrics (\$13.8M+ leveraged return on \$1.2M historical regional investment). Requested annual county dues of **\$33,579** (calculated at 30 cents per capita).
 - **Action & Vote Disposition:** Approved payment of annual dues of \$33,579 by unanimous roll call vote (**00:38:56**: Commissioners Brown - Yes, Reagan - Yes, Henry - Yes).
- **00:39:13 Consulting Service Contract (Cheryl McGarrick):**
 - **Sponsor / Presenter:** Kylene Swackhammer, Plan Commission.
 - **Deliberation Summary:** A professional services contract for recently retired principal planner/transportation expert Cheryl McGarrick (\$30/hour, paid out of the Plan Commission's comp fund, not County General) to assist on an as-needed consulting basis. Minor edits noted: year correction from 205 to 2025, maintaining weekly time sheet submissions.
 - **Action & Vote Disposition:** Approved with corrections by unanimous roll call vote (**00:42:36**: Commissioners Reagan - Yes, Brown - Yes, Henry - Yes).
- **00:43:19 Ordinance 2025-01: Creation of New Fund for Mental Health Court Grant:**
 - **Sponsor / Presenter:** J. Miranda (Community Corrections) / Judge Mair (absent).
 - **Deliberation Summary:** Introduction of an ordinance establishing a dedicated fund for a new problem-solving mental health court initiative, backed by an initial \$5,000 planning grant from the Indiana Office of Court Services. Funded entirely by grants, not county taxes.
 - **Action & Vote Disposition:**

- Introduced by motion and roll call vote (00:43:41: Commissioners Brown - Yes, Reagan - Yes, Henry - Yes).
 - Rules suspended by unanimous roll call vote (00:46:01).
 - **Adopted** by unanimous roll call vote (00:46:16: Commissioners Brown - Yes, Reagan - Yes, Henry - Yes).
- **00:46:36 Resolution 2025-01: Commissioner Departmental Assignments and Responsibilities:**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Establishes departmental liaison responsibilities for 2025:
 - *Commissioner Henry:* 911 Center, Emergency Management, EMS, GIS, Health Department, ECI, and Economic Development.
 - *Commissioner Brand:* Human Resources, County Building Maintenance, Highway Department, Planning & Zoning, Building Commissioner, IT, and Sheriff's Department Liaison.
 - *Commissioner Reagan:* Veterans Affairs, Weights & Measures, Courts/Court System, Fairgrounds/Fair Board, and Commissioner Office Staff.
 - **Action & Vote Disposition:** Approved by roll call vote (00:49:54: Commissioners Brand - Yes, Reagan - Yes, Henry - Yes).
- **01:21:19 Audio Equipment Replacement Quotes (Tabled Item):**
 - **Sponsor / Presenter:** Mr. Slusher.
 - **Deliberation Summary:** Presented equipment replacement quotes for aging chambers audio/microphone systems that are past end-of-life and lack replacement parts. Discussed wired vs. wireless options and hallway overflow speakers.
 - **Action & Vote Disposition:** Tabled for further vendor specification review on button mute capabilities (01:24:24).
- **01:24:45 Claims and Payroll Approvals:**
 - **Claims:** Totaling **\$3,562,661.12** (noted improvements in staff descriptions on claims; online posting is active). Approved by roll call vote (01:26:05: Commissioners Reagan - Yes, Brown - Yes, Henry - Yes).
 - **Payroll (1/2/2025):** Totaling **\$1,669,659.98**. Approved by roll call vote (01:26:28).
 - **Payroll (1/15/2025):** Totaling **\$1,100,452.35**. Approved by roll call vote (01:26:47).

4. Department Head & Elected Official Reports

- **Plan Commission & Building Commissioner Annual Report (00:30:31 & 00:50:31):**
 Kylene Swackhammer and Building Commissioner Tom Fouch presented annual metrics. The building department issued 755 permits, collected \$132,500.48 in total income (retaining 10% in unsafe housing), conducted 1,226 inspections, and investigated 105 complaints. Fouch noted 20<U+2013>25 structural teardowns currently listed, constrained by funding.

- **Human Resources (01:06:32):** Pam Cree reported on a meeting with IU Health Clinic (confirming no closure is planned and noting upcoming physician additions) and outlined transitions for occupational drug testing and physicals to Covertech and Concentra to reduce employee wait times.
 - **Highway Department (01:13:31):** Tom Slusher and Troy reported on chip-and-seal vs. asphalt overlay metrics (covering ~10% of 785 road miles last year), drainage priorities, upcoming milling needs due to road elevations, and praised highway crews for handling recent severe winter windstorm overtime operations.
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5. Open Public Comment / Citizen Forum

(Public comment period focusing heavily on utility-scale solar energy ordinances, moratoriums, and agricultural property rights).

- **01:27:10 Robert Kester** (Speaking on behalf of Linda Hansen, League of Women Voters): Read a prepared statement criticizing the current solar moratorium as lacking explicit rationale or purpose compared to prior transparent study processes, warning against reliance on unofficial, biased amendments.
 - **01:30:35 Dr. Jonathan Monroe** (Cardiothoracic Anesthesiologist): Spoke on public health implications, detailing the heavy toll of air pollution and fossil fuel emissions on cardiovascular and pulmonary disease, urging support for renewable energy development.
 - **01:32:34 Christian Harzel** (Renewable Ready Delaware County, Albany resident): Urged the board to lift the solar moratorium, honor the existing well-vetted solar ordinance, and avoid restarting the process due to outside interest group pressure.
 - **01:36:10 Jackson Franklin** (Resident): Addressed the economic benefits of utility solar for local farmers seeking diversified, stable income streams and enhanced regional grid reliability via MISO/PJM markets.
 - **01:38:03 Rebecca Wright** (Ball State student / End-of-life solar recycling family background): Spoke on the safety of solar technology and emphasized preserving agricultural land use options while preventing poorly planned urban sprawl.
 - **01:39:39 Dan Barry** (County Road 800 North resident): Supported utility solar as a viable property rights option for farmers to diversify income, contrasting solar's temporary footprint with permanent agricultural loss from residential subdivisions.
 - **01:41:36 Cheryl Swingley** (Resident): Critiqued the unofficial 17-page solar amendment document submitted at a previous meeting by opponents, urging commissioners to let the established, multi-year vetted zoning ordinance stand without further obstruction.
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6. Administrative Updates & Adjournment

- **Board / Staff Announcements:**

- Commissioners scheduled an **Executive Session** for next Monday at 10:00 AM in the conference room to discuss personnel issues and economic development projects 01:45:26.
 - Noted successful groundbreaking for the Isaiah House.
 - Commissioner Brand announced the rollout of an "Employee of the Month" program featuring designated parking and recognition, and noted upcoming reviews of take-home vehicle asset inventories.
 - **Adjournment:** Official motion to adjourn passed by voice vote/roll call at the conclusion of the session 01:50:23.
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